



File No.: EXP202312893

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on August 8, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against TEMPLE GRUP CONSULTORS BCN, S.L. (hereinafter, the respondent) without their request receiving the legally established response, as stated by the complainant.

SECOND: This Agency analyzed the response provided by the respondent and considered that the right had been addressed, and the complaint is inadmissible for the following reasons:

“...In response to the actions of transfer and information carried out, a written response from the respondent has been received by this Agency in which, for the purposes here, it states the following: The complainant's data was alongside that of the other members of the homeowners' association ***COMUNIDAD.1, which was provided with the information submitted by the current President of said community at the time of contracting our services.

In the responses dated 31/7/23 and 4/8/23, the right of access is addressed, and it is explained who provided their data to TEMPLE and for what reasons, which were none other than hiring us to manage this property.

Measures have been taken to prevent similar incidents, and responses to the rights of the interested parties will be made through the designated Data Protection Officer of Grup Qualia. It concludes that on 5/9/23, a new response was sent to the complainant via email.

Once the reasons presented by the respondent, which are in the file, were analyzed, this Agency considers that the requested right has been addressed.

For this reason, in accordance with the provisions of Article 65 of the LOPDGDD, the Director of the Spanish Data Protection Agency AGREES to declare the complaint inadmissible.

THIRD: The complainant, in total disagreement with the resolution, submits a motion for reconsideration which, once resolved, is upheld and gives rise to the current complaint with the following arguments:

“...In the motion for reconsideration, it is alleged that, after the complaint, a response to the requested right of access has been provided, but it is incomplete since only part of their personal data has been provided and they have been informed of the origin of their data, without any response regarding the purposes of the processing, the recipients to whom their data has been communicated, the guarantees of the processing, the retention period, and whether there are automated decisions regarding the processing of their data (...)

Consequently, having exercised the right of access, the responsible entity must respond, and, if it considers such access, choose the manner in which it will provide the information, which may be done by means of a copy of their personal data.

Well, in the present case, it is noted that the respondent has provided the personal data held in its files via email dated August 29, 2023, and has also informed about the origin of the data via email dated September 5, 2023. However, it is not noted that the rest of the information has been provided according to the content of Article 15.1 of the GDPR or that this has been denied in a reasoned manner.

On the other hand, in response to the hearing procedure carried out, the respondent has provided the emails that responded to the requested right of access (among them, one dated 29/8/2023). However, despite the hearing procedure carried out, it does not prove compliance with the duty to respond to the request made, in accordance with Article 12.4 of the LOPDGDD and Article 15 of the GDPR.

In this regard, the Guidelines 01/2022 on the rights of the interested parties — Right of access, version 2.0, adopted on March 28, 2023, indicate in their section 20 the following (the translation is ours):

“The third component of the right of access is the information about the processing and the rights of the interested parties that the data controller must provide under Article 15, paragraph 1, letters a) to

h), and paragraph 2.

This information could be based on a text taken, for example, from the privacy notice of the data controller or from the record of the data controller referred to in Article 30 of the GDPR, but it may need to be updated and adapted to the request of the interested party. The content and degree of specification of the information are detailed in section 4.3.”

Therefore, the motion for reconsideration should be upheld...”

FOURTH: On March 11, 2024, the respondent is again notified of the complaint, the motion for reconsideration submitted by the complainant, and the favorable resolution of said motion so that, within a period of fifteen working days, it can make any allegations it deems appropriate.

The respondent has not submitted any allegations nor is there any record that it has addressed the right.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the Law

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Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), grants the Director of the Spanish Agency for the Protection of Data the authority to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

Article 58.2 of the GDPR grants the Spanish Agency for the Protection of Data a series of corrective powers to rectify any infringement of the GDPR, including "ordering the data controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to provide its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them are being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with Article 13 of the LOPDGDD, when the exercise of the right relates to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if not obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

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V

Conclusion

The claimant requested the right of access and, in response to the received answer, filed a complaint with this Agency. After analyzing the complaint, it is initially considered that the right has been addressed and is therefore inadmissible.

Later, following the appeal for reconsideration submitted by the claimant, the response provided by the respondent is deemed incomplete, and the respondent is given another opportunity to provide arguments and address the right.

The respondent has not responded to this Agency to demonstrate that it has fully addressed the right, which results in the complaint being upheld.

In light of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 15 of the

GDPR have been infringed and to urge TEMPLE GRUP CONSULTORS BCN, S.L. with NIF B60223419, to send the claimant a certification addressing the requested right or to deny it with justification, indicating the reasons why the request cannot be granted, within ten working days following the notification of this resolution, in accordance with the provisions set forth in this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: TO NOTIFY this resolution to A.A.A. and to TEMPLE GRUP CONSULTORS BCN, S.L. In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

1381-090823

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